

25CV06798 Global Assets Liens & Foreclosures, LLC, v. EWC Resources, Inc.

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-13

Motion: Application for Right to Attach Order and for Issuance of Writ of Attachment

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Case Number

25CV06798

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/13/2026 - 10:00

Nature of Proceedings

Application for Right to Attach Order and for Issuance of Writ of Attachment

Tentative Ruling

Global Assets Liens & Foreclosures, LLC, v. EWC Resources, Inc.

Case No. 25CV06798

Hearing Date: July 13, 2026

HEARING: Application for Right to Attach Order and for Issuance of Writ of Attachment

ATTORNEYS: For Plaintiff Global Assets Liens & Foreclosures, LLC: Miriam G. Ortiz

For Defendant EWC Resources, Inc.: Robert C. Baca

TENTATIVE RULING:

The application of plaintiff Global Assets Liens & Foreclosures, LLC, for a right to attach order and for issuance of a writ of attachment is denied.

Background:

On October 28, 2026, plaintiff Global Assets Liens & Foreclosures, LLC, (Global) filed its complaint in this action against defendant EWC Resources, Inc., (EWC) asserting four causes of action: (1) breach of written contract; (2) account stated; (3) open account; and (4) goods sold and delivered.

On April 8, 2026, EWC filed its answer to the complaint, generally denying the allegations thereof and asserting 10 affirmative defenses.

On April 30, 2026, Global filed this application for right to attach order and for issuance of writ of attachment with supporting papers.

On June 18, 2026, Global filed its amended application (Amended Application) for right to attach order and for issuance of writ of attachment with supporting papers.

On July 6, 2026, EWC filed its opposition to Global's application.

Analysis:

A right to attach order and writ of attachment may only be issued after a hearing by the court. (Code Civ. Proc., § 484.040.) Although no proof of service of the application and supporting papers appears in the court's file, the application has been timely opposed by EWC.

"At the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following:

"(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

"(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

"(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

"(4) The amount to be secured by the attachment is greater than zero." (Code Civ. Proc., § 484.090, subd. (a).)

"The court's determinations shall be made upon the basis of the pleadings and other papers in the record; but, upon good cause shown, the court may receive and consider at the hearing additional evidence, oral or documentary, and additional points and authorities, or it may continue the hearing for the production of the additional evidence or points and authorities." (Code Civ. Proc., § 484.090, subd. (d).)

"Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010, subd. (a).)

This action is based on a claim for money based upon a written contract, with the unpaid principal of \$17,263. (Complaint, ¶¶ 11-15 & exhibit B.) The claim in this action is not secured by any interest in real property and is against a defendant that is a corporation, which is not a natural person. (Code Civ. Proc., § 483.010, subds. (b), (c); Amended Application, ¶ 2(b)(1).) The court finds that the claim upon which the attachment is based is one upon which an attachment may be issued.

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., § 481.190.)

"A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (CDF Firefighters v. Maldonado (2008) 158 Cal.App.4th 1226, 1239.)

There is no dispute between the parties that there were contracts of sale between HERBL, Inc., (HERBL) and EWC as shown by invoice numbers AR247326, AR247327, AR248995, AR249688, and AR249690 (collectively, the EWC Invoices). (Traina decl., ¶ 5 & exhibit B; Carrillo decl., ¶ 4.)

The accounts receivable of HERBL, represented by the EWC Invoices, were purchased by Distro Accounts Receivable, LLC, (Distro) in the course of a court-ordered receivership of HERBL. (Traina decl., ¶ 3; Dunmore decl., ¶¶ 3-6.) Distro assigned to Global all of the assets acquired by Distro from HERBL. (Traina decl., ¶ 3; Dunmore decl., ¶ 7.)

According to Global after a review of HERBL's documents, the EWC Invoices were issued by HERBL in connection with goods sold and delivered to EWC between May 4, 2023, and July 24, 2023. (Traina decl., ¶ 5.) The required "pay by" date is indicated on each invoice. (Ibid.) Based on such records, the goods were timely delivered without objection by the purchaser, but EWC did not pay for the goods, leaving a principal balance of \$17,263.80. (Ibid.)

According to EWC's Chief Executive Office, Sabas Carrillo, each of these invoices were timely paid. (Carrillo decl., ¶¶ 5-7 & exhibits A-D). In support of the showing of payment, EWC provides copies of checks and annotated purchase orders for these invoices. (Ibid.)

Based upon the evidence presented, the court finds that Global has not met its burden to show probable validity of the claim upon which the attachment is based. Global's showing is of an assignee reviewing records of HERBL. There is no showing by anyone with personal knowledge of HERBL's records that the records are sufficiently complete to establish that the absence of a payment record implies that no payment on the EWC Invoices had been made. At the same time, specific evidence of payment is provided by EWC from a person who has personal knowledge of EWC's business records and practices.

Accordingly, the court finds that the plaintiff has not established the probable validity of the claim upon which the attachment is based. The application for a right to attach order and for issuance of a writ of attachment will be denied.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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